

SENATE BILL 1107

By Kyle

AN ACT to amend Tennessee Code Annotated, Title 23,
Chapter 3; Title 27 and Title 39, relative to
attorneys at law.

WHEREAS, attorneys are officers of the court and have a general duty of candor to the courts, including a duty to refrain from knowing misrepresentations; and

WHEREAS, attorneys have a duty to disclose to the court all material information; and

WHEREAS, attorneys have a duty to be honest and forthright with courts; and

WHEREAS, attorneys have a duty to refrain from deceiving or misleading courts either through direct representations or through silence in all aspects of litigation; and

WHEREAS, an attorney who makes false statements, tells half-truths, or otherwise misleads or harms the legal system and the legal profession; and

WHEREAS, the essential aim of our legal system is to seek truth in the pursuit of justice; and

WHEREAS, an attorney who subordinates truth to obtaining a successful outcome for a client undermines the rule of law and erodes public trust and confidence in the legal system; and

WHEREAS, the law is supposed to be an honorable profession, intended for the promotion of justice, and not a trade of trickery, for the purposes of fraud or oppression; and

WHEREAS, compliance with the Tennessee Rules of Professional Conduct is expected of attorneys practicing before all courts; and

WHEREAS, the license to practice law is a continuing proclamation by the Court that the holder is fit to be entrusted with professional and judicial matters and to aid in the administration of justice as an officer of the court; and

WHEREAS, violations of the Tennessee Rules of Professional Conduct constitute misconduct and must be grounds for discipline; and

WHEREAS, disbarment is generally appropriate when an attorney, with intent to deceive the court, makes a false statement, submits a false document, or improperly withholds material information, and causes serious or potentially serious injury to a party, or causes a significant or potentially significant adverse effect on the legal proceeding; and

WHEREAS, an attorney must not knowingly use perjured testimony or false evidence; and

WHEREAS, an attorney must not participate in the creation or preservation of evidence when the attorney knows or it is obvious that the evidence is false; and

WHEREAS, Tennessee courts currently recognize the litigation privilege as an absolute privilege that applies when a statement or act is made in the course of a judicial proceeding and is relevant to the issue involved in the judicial proceeding; and

WHEREAS, conduct involving the creation and submission of false and fraudulent pleadings, affidavits, and subornation of false court testimony has been held by the Tennessee Court of Appeals in *Law Offices of T. Robert Hill PC v. Cobb*, No. W2020-01380-COA-R3-CV (Tenn. Ct. App. May 27, 2021) to fall within the litigation privilege; and

WHEREAS, if this conflict between the Tennessee Rules of Professional Conduct and the common law privilege is not resolved in a manner to hold lawyers accountable for deliberate misinformation and subornation of perjury, then the Tennessee justice system loses all credibility; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 23, Chapter 3, Part 1, is amended by adding the following as a new section:

An attorney who, while acting in the capacity of counsel for a client or identifiable prospective client, engages in conduct that would constitute any of the following offenses is not immune from prosecution:

- (1) Perjury, as defined in § 39-16-702;
- (2) Aggravated perjury, as defined in § 39-16-703;
- (3) Subornation of perjury, as defined in § 39-16-705;
- (4) Tampering with or fabricating evidence, as defined in § 39-16-503;
- (5) Destruction of or tampering with governmental records, as defined in § 39-16-504; or
- (6) Coercion or persuasion of a witness, as defined in § 39-16-507.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.